

Court No. - 21

Case :- WRIT - C No. - 5720 of 2023

Petitioner :- Aftab Alam Khan

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ravindra Prakash Srivastava

Counsel for Respondent :- C.S.C., Chandra Shekhar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Syed Qamar Hasan Rizvi, J.

The petitioner has challenged the demand notice dated 17.9.2022 issued by respondent no. 4 for recovery of electricity dues from the petitioner in a case of theft of electricity.

Sri Chandra Shekhar Singh, learned counsel appearing on behalf of the respondent electricity department states that the impugned notice has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Order Date :- 20.2.2023

Arif

(Syed Qamar Hasan Rizvi, J.) (Manoj Kumar Gupta, J.)